

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicole Stern	Team: Squad #05	CCRB Case #: 202308897	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 09/19/2023 3:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/19/2025	Precinct: 120		
Date/Time CV Reported Tue, 09/19/2023 5:07 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 09/19/2023 5:07 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Haytham Shehabeldin	03286	962799	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Joseph Russo	20327	965489	120 PCT
2. PO James Mastroilli	11943	956894	120 PCT
3. PO Nicholas Bocchino	25780	971835	120 PCT
4. PO Joseph Casale	24233	968998	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Haytham Shehabeldin	Abuse: Sergeant Haytham Shehabeldin threatened to arrest § 87(2)(b)	A . Within NYPD Guidelines

Case Summary

On September 19, 2023, § 87(2)(b) filed this complaint via the CCRB's call processing system. A duplicate complaint was filed by phone with IAB on September 19, 2023, generating original log #2023-28108.

On September 19, 2023, at approximately 3 p.m., § 87(2)(b) spoke to Sgt. Haytham Shehabeldin of the 120th Precinct regarding a property dispute with the lessees, the § 87(2)(b) family, at the vacant lot next to § 87(2)(b) in Staten Island. After speaking with both § 87(2)(b) and members of the § 87(2)(b) family, Sgt. Shehabeldin threatened to arrest § 87(2)(b) if she tried to break the § 87(2)(b) locks (**Allegation A: Abuse of Authority, within NYPD guidelines**).

The investigation obtained BWC footage (Board Review 01-07) which is summarized at (Board Review 08). All references to video evidence below refer to the time stamp in the video player, and not to any on-screen clock embedded in the footage itself.

This case was initially assigned to Inv Henry Buren and was transferred to Inv. Nicole Stern on October 26, 2023.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sgt. Haytham Shehabeldin threatened to arrest § 87(2)(b)

It is undisputed that § 87(2)(b) is a partial owner of a fenced-in lot which is currently the subject of familial disputes between the § 87(2)(b) family and the § 87(2)(b) family. A member of the § 87(2)(b) family has a lease granting him use of the property for his company.

§ 87(2)(b) testified that day before the incident, she called 911 from the lot to get assistance entering the property which had been locked by the § 87(2)(b) (Board Review 09). PO Joseph Russo and PO James Mastorilli of the 120th Precinct arrived and advised that she could remove the lock since she was the owner. § 87(2)(b) cut the lock and returned the next day. The next day, the § 87(2)(b) were also present on the lot, and she called the police again to help with the dispute. Sgt. Shehabeldin explained to § 87(2)(b) that lessees have the right to not have their landlord enter the property without notice. He told § 87(2)(b) that if she returned and tried to enter the lot or break the locks, she would be arrested.

§ 87(2)(g) Sgt. Shehabeldin spoke to the § 87(2)(b) and confirmed that they did not want to press charges over § 87(2)(b) cutting the lock the previous day but would press charges if she cut the locks in the future (Board Review 07, at 8:10). At 19:00, Sgt. Shehabeldin shared this information with § 87(2)(b) and added that she had permission from the police the day before but if she cut the locks again, she could be arrested for criminal mischief.

§ 87(2)(g)

A person is guilty of criminal mischief in the fourth degree when, having no right to do so nor any reasonable ground to believe that he or she has such right, he or she intentionally damages property of another person. NY CLS Penal § 145.00 (Board Review 10).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **within NYPD guidelines**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 11).
- Sgt. Shehabeldin has been a member of the NYPD for seven years and has been a subject in one CCRB complaints and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of October 30, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (Board Review 12).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad No.: 5

Investigator:	<u>Nicole Stern</u>	<u>Nicole Stern – Investigator</u>	<u>10/30/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>October 30, 2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date